

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008257

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: KATARINA BORDEAUX

vs.

DEFENDANT: AMERICAN HONDA
MOTOR CO., INC

NATURE OF PROCEEDINGS: MOTION – CHANGE OF VENUE

RULING

Defendant American Honda a motion to approve for change of venue, with a request to transfer the case from Marin County, Superior Court of California, to Sacramento County Superior Court, pursuant to Code of Civil Procedure section 397(c).

Defendant asserts that the operative facts and relevant parties have no connection to Marin County. Defendant asserts that the events giving rise to these claims occurred in Sacramento County. Specifically, (1) the Subject Vehicle was purchased from Elk Grove Honda – a dealership located in Sacramento County; (2) the alleged misrepresentations and contractual negotiations occurred in Sacramento County; (3) the Subject Vehicle was exclusively serviced at a dealership in Sacramento County; and (4) all relevant service and diagnostic records are located in Sacramento County.

Plaintiff has not filed a response, nor was an opposition to the venue change filed. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.) Defendant's motion is therefore GRANTED in it's entirely.

Defendant to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by

order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008259

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: AATHER IMRAN

vs.

DEFENDANT: AMERICAN HONDA
MOTOT CO., INC.

NATURE OF PROCEEDINGS: 1) MOTION – COMPEL ANSWERS TO
INTERROGATORIES – DISCOVERY FACILITATOR PROGRAM
2) MOTION – ADMISSIONS – DISCOVERY FACILITATOR PROGRAM
3) MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM
4) MOTION – COMPEL ANSWERS TO INTERROGATORIES – DISCOVERY
FACILITATOR PROGRAM

RULING

Pursuant to Marin County Rule, Civil 2.13B, on July 13, 2026, Robert James Begley, Esq. was appointed to preside as Discovery Facilitator to assist the parties to resolve Defendant's Motions to Compel answers to interrogatories and requests for admissions.

The court's notice to appoint discovery facilitators was entered on June 30.

Plaintiff filed opposition papers to the Motions to Compel on July 7. Reply briefs were filed by the Defendants on July 10.

Given the late appointment of the Discovery Facilitator, the Court is not surprised to have not received a Declaration of Non-Resolution from either party MCR Civ 2.13H.

The Court reminds the parties that compliance with MCR Civ 2.13H not only includes the timely filing of the Declaration of Non-Resolution by each party five court days prior to the hearing, but also requires that "[t]he Declaration shall not exceed three pages and ***shall briefly summarize the remaining disputed issues and each party's contentions.***" (MCR Civ 2.13H(1), emphasis added.)

The matter is continued to the next motion hearing date of August 28, 2026, at 1:30 p.m. in the department to provide the parties with more time to meaningfully participate in the facilitator program.